

complaint

Ms D is unhappy that Elite Insurance Company Limited (has ceased writing new business but continues to fulfil existing contracts of insurance) won't pay her claim for storm damage to her roof and inside her home under her home insurance.

background

In August 2017 Ms D reported a claim for storm damage to her roof and internal damage caused by the water getting in. Elite sent a surveyor out to inspect the damage. It concluded that the damage wasn't caused by a storm as defined in the policy. It also said its surveyor had noted that the roof was in poor condition. The surveyor also said that water had leaked through to the extension and kitchen over a period of time. Elite said that the damage wasn't therefore covered under the terms of the policy.

On referral to this service our investigator thought that Elite had acted reasonably.

Ms D didn't agree and the matter has been passed to me for consideration.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

As our investigator has advised Ms D, in considering storm claims we first have to decide whether there was an actual storm. If there wasn't, the claim won't be covered as storm damage. Storm damage is defined by the policy as loss or damage caused by storm force winds of Force 10 (about 55-63mph) or above. I have also considered that at this service we consider storm to generally involve violent winds accompanied by rain, hail or snow. Looking at the weather records for the month before the claim was reported, the maximum wind speed for any day was 40 mph. I don't think that would be anything like sufficient to cause damage to a roof in sound condition.

I've also taken account of the fact that the surveyor described the state of repair of the roof as poor due to age, the fixing nails were starting to work loose leaving gaps where the water could get in. I appreciate that Ms D denies that her roof is in poor condition and I note that she had previously had some repairs carried out. But I think it's reasonable to look at the expert evidence provided by Elite. And as I say, in the absence of there being any record of a storm (for insurance purposes) the claim isn't covered

As for the internal damage, for the same reason this can't be covered as storm damage. I have considered whether it was accidental damage. This is defined in the policy as

*"Sudden, unexpected and physical damage which:
i happens at a specific time; and
ii was not deliberate; and
iii. was caused by something external and identifiable."*

Elite's surveyor noted that water had leaked for a period of time onto the ceiling, which had cracked in both the extension area and the kitchen. I don't think that that could be described as sudden, unexpected or happening at a specific time. Both that damage and the damage

to the roof appear to have happened over a period of time. It may be that bad weather has played a part in this but unfortunately that isn't covered under the policy.

my final decision

I don't uphold the complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Ms D to accept or reject my decision before 8 July 2018.

Ray Lawley
ombudsman